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February 17, 2025

By: Jech

An Act relating to harmful woody species; directing the Oklahoma Conservation Commission to implement certain plan; requiring certain report to be compiled and presented to Commission by certain date; authorizing the Commission to implement certain plans to assist state agencies; directing the agencies to submit reports each year on progress; defining term; providing for promulgation of rules; providing for codification; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 3-9-100 of Title 27A, unless there is created a duplication in numbering, reads as follows:

A. The Oklahoma Conservation Commission shall implement a statewide plan for the control, removal, and eradication of harmful woody species on state-owned, -leased, or -operated land.

B. On or before January 1, 2026, a report shall be compiled and presented to the Commission from the Oklahoma Department of Agriculture, Food, and Forestry, the Commissioners of the Land Office, the Department of Wildlife Conservation, the Department of Corrections, the Oklahoma Tourism and Recreation Department, the

1 Department of Transportation, and the Oklahoma Turnpike Authority
2 with a comprehensive report to determine the affected inventory and
3 subsequent plan to control, remove, or eradicate harmful woody
4 species from state-owned, -leased, or -operated properties. The
5 Commission shall assist in the administration of the agency's plan
6 and develop any necessary programs to expand the capabilities of
7 each agency's approach to control, remove, or eradicate harmful
8 woody species.

9 C. The agencies specified in subsection B of this section shall
10 electronically submit to the Legislature an annual report by
11 November 1, 2026, and each subsequent year by November 1, detailing
12 the progress of the control, removal, and eradication of harmful
13 woody species on state-owned, -leased, or -operated land.

14 D. As used in this section, "harmful woody species" means a
15 tree or shrub species that is rapidly encroaching into adjoining
16 lands and is likely to cause harm to the environment or economy.
17 Harmful woody species include, but are not limited to, *Juniperus*
18 *virginiana* (Eastern Redcedar), *Juniperus scopulorum* (Rocky Mountain
19 juniper), *Juniperus monosperma* (oneseed juniper), and *Tamarix*
20 *ramosissima* (salt cedar).

21 E. The Oklahoma Conservation Commission shall promulgate rules
22 necessary to implement the provisions of this section.

23 SECTION 2. This act shall become effective July 1, 2025.
24

SECTION 3. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

COMMITTEE REPORT BY: COMMITTEE ON AGRICULTURE AND WILDLIFE
February 17, 2025 - DO PASS